

FEDERAL MARITIME COMMISSION

DOCKET NO. 14-16

BALTIC AUTO SHIPPING, INC.

v.

**MICHAEL HITRINOV a/k/a MICHAEL KHITRINOV and
EMPIRE UNITED LINES CO., INC.**

**RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION TO
CORRECT THE RECORD AND FOR OTHER RELIEF**

Respondents respectfully submit this opposition to Complainant's motion to correct the record and for other relief. **[Doc. No. 112]**. The "other relief" sought by Complainant is to strike Respondents' Opposition to Complainant's Motion for an Indefinite Stay, and Respondents confine their opposition to this aspect of Complainant's motion.

Complainant's counsel, Mr. Nussbaum, offers four bases in support of his motion to strike: (1) he argues that the opposition was untimely filed, (2) he argues that it "is an unauthorized sur-reply to complainant's reply to Respondents' Petition Regarding Attorney Fees", (3) he argues that the opposition contains statements that are "immaterial, impertinent, or scandalous", and (4) he argues that Respondents' opposition exceeded the ten page limit provided for under Rule 71.

Respondents' Opposition Was Timely Filed

Mr. Nussbaum correctly notes that the undersigned sent an email at 11:49 p.m. on August 22, 2017 to the Secretary of the Commission and counsel of record to serve Respondents' Opposition. Mr. Nussbaum also correctly observed that the file attached to the undersigned's email was unreadable. However, Mr. Nussbaum then crosses the threshold into a fantasy

universe when he claims that the undersigned did not correct this defect regarding the attachment until 6:00 p.m. the following day. Mr. Nussbaum seeks to support this bizarre claim by providing what purports to be a print-out from his Gmail account showing a message received from the undersigned on “Wed, Aug 23, 2017 at **6:04 PM.**” [**Doc. No. 113 at Appendix 4**].

In reality, the undersigned corrected the defect (the unintended attachment of an incorrectly generated PDF file) at **11:04 a.m.** on August 23, 2017. See August 23, 2017 email attached as **Exhibit 1**. The fact that the undersigned’s message was sent at 11:04 a.m., and not at 6:04 p.m. as falsely claimed by Mr. Nussbaum via his clearly altered Gmail print-out, can be readily determined by checking the Secretary’s email inbox.

Mr. Nussbaum then creates a narrative out of whole cloth and without any evidentiary support, to accuse the undersigned of “sharp practice” and of feigning a “technical error” for the assumed purpose of “interposing additional arguments in further support of their Petition Regarding Attorneys Fees....” [**Doc. No. 112 at pp. 3-4**].

The simple truth is that owing to the late hour and to a simple mistake in the use of office software, the undersigned mistakenly saved the wrong file as a PDF and attached the incorrect file to the email transmitting Respondents’ Opposition.¹ It was not until the undersigned arrived at the office the following morning (following attendance in court on another matter) that the correction could be made. Ironically, despite Mr. Nussbaum’s apparent vigilance to police the undersigned’s filings, he provided no notification of the defect, and instead the undersigned learned about the problem from co-counsel Gerry Doyle via an email sent at 8:41 a.m. on August

¹ The undersigned notes that when Mr. Nussbaum failed to properly sign the Confidential version of Complainant’s Response to Respondents’ Petition Regarding Attorney Fees [**Doc. No. 105**] by mistake, and the undersigned brought this mistake to his attention, Mr. Nussbaum knew how to correct such an error. He contacted the Secretary via email to correct the error and ironically enough, in the same email to the Secretary, Mr. Nussbaum threatened the undersigned not to seek to correct the mistake via a motion to strike, noting that “such a motion would be an unnecessary burden upon the Commission.” See September 7, 2017 email attached as **Exhibit 2**. Meanwhile, Mr. Nussbaum suggests that the undersigned’s error can only be resolved via a motion to strike and that it was improper for the undersigned to correct the error via an email to the Secretary attaching the correct PDF.

23, 2017. See Mr. Doyle's August 23, 2017 email attached as **Exhibit 3**.

FMC Rule 116 provides the mechanism for computation of time for service of filings by parties, and said rule states in relevant part that "[t]he date of service of documents served by parties will be the date when the document served is transmitted by email, deposited in the United States mail, delivered to a courier, or delivered in person." In this regard Mr. Nussbaum makes no complaint about any delay in receipt of the copy of Respondents' Opposition served via United States mail² and Rule 116 is focused on the time when a document is deposited in the United States mail rather than the time when a document is actually received via mail.

In line with the above, to the extent that any delay in the receipt by Mr. Nussbaum of Respondents' Opposition was caused by a technical problem rather than any willful act, and in light of the fact that Complainant and its counsel have not been prejudiced in any way by the slight delay in receipt of the attachment, and in further consideration that the slight delay has not delayed these proceedings (other than by affording Mr. Nussbaum an excuse for another round of vexatious motion practice), Respondents' respectfully submit that its filing of an opposition to Complainant's Motion for an Indefinite Stay should be deemed as having been timely filed.

Respondents' Opposition Was Not an Unauthorized Reply

Mr. Nussbaum separately argues that Respondents' Opposition to Complainant's Motion for an Indefinite Stay, notwithstanding its title and obvious focus, "can only be construed as a sur-reply to complainant's reply to respondents' Petition Regarding Attorneys Fees...."

[Doc. No. 112 at p. 3].

Mr. Nussbaum's support for this argument seems to be limited to (1) the fact that Respondents' Opposition was filed on the same day as Complainant's Reply to Respondents'

² Incidentally, the undersigned has yet to receive a copy of Complainant's Motion for an Indefinite Stay via "first class mail, postage prepaid", notwithstanding Mr. Nussbaum August 15, 2017 certificate of service of same upon the undersigned via such means.

Petition Regarding Attorney Fees, and (2) the fact that the Commission, in its August 17, 2017, Notice Denying Extension of Time, “had already made clear that it would decide the issue of the request for the stay.” **[Doc. No. 112 at p. 3]**.

First, the fact that the deadline for Respondents to file an opposition to Complainant’s Motion for an Indefinite Stay happened to fall on the same day as Complainant’s deadline to file a reply to Respondents’ Petition Regarding Attorney Fees cannot fairly be held against Respondents. Respondents have no control over, or secret advance knowledge concerning, when Mr. Nussbaum files his numerous non-dispositive motions for relief.

The plain fact is that Mr. Nussbaum, by virtue of seeking a stay, had filed a “request for an order or ruling not otherwise specifically provided for in this part” under Rule 69(a) on August 15, 2017 **[Doc. No. 102]**, and as such, Respondents were afforded the right under Rule 69(f) to “file and serve a response to any written motion” and, pursuant to Rule 71(b), had until “7 days after the date of service of the motion to do so.” That this deadline coincided with the deadline set by the Commission for Complainant’s reply to Respondents’ Petition Regarding Attorney Fees is immaterial.

Second, the fact that the Commission had already indicated that it would “issue a separate Order addressing Complainant’s request for a stay of the proceeding” **[Doc. No. 103]** does not render Respondents’ Opposition improper or somehow convert it into a sur-reply to Complainant’s reply to Respondents’ Petition Regarding Attorney Fees. In fact, it was the Commission’s apparent consideration of Complainant’s alternative request for a stay as evidenced by its August 17, 2017 Notice Denying Extension of Time which prompted Respondents to separately oppose Complainant’s Motion for an Indefinite Stay.

Since Mr. Nussbaum has failed to substantiate his claim that Respondents' Opposition constitutes an improper sur-reply, Complainant's motion to strike Respondents' Opposition should be denied.

Respondents' Opposition Was Not Redundant, Immaterial, Impertinent, or Scandalous

Mr. Nussbaum also argues that Respondents' Opposition "should be struck because it ... contains material that is 'redundant, immaterial, impertinent, or scandalous.'" **[Doc. No. 112 at p. 4]**. Aside from this bare recitation of the grounds for striking a pleading under Federal Rule of Civil Procedure 12(f), Mr. Nussbaum offers nothing to substantiate this argument, and in fact, never quotes or identifies any particular passage in the opposition as being "redundant, immaterial, impertinent, or scandalous."

Thus, the Commission and Respondents can only speculate as to what Mr. Nussbaum found to be scandalous in Respondents' Opposition. Perhaps it was the revelation that Mr. Nussbaum had actively misrepresented the existence of a "conference" before Judge Cavanaugh as a pretext to bluff the undersigned into acquiescing in delaying the time for Complainant to oppose Respondents' Petition Regarding Attorney Fees. Maybe it was the documentation of Mr. Nussbaum's repeated failure to comply with FMC Rules in this, and other, matters before the Commission. After all, his complete failure to confer with the undersigned regarding his request for a stay is rather scandalous. But it might also have been the undersigned's reference to the sworn affirmation filed by Mr. Nussbaum's client and partner, Sergey Kapustin, that drew Mr. Nussbaum's ire. That affirmation is scandalous indeed, insofar as it documents Mr. Nussbaum's apparent bad faith motivation for repeatedly pursuing frivolous claims against Respondents and his willingness to rely upon false or fabricated documents and testimony to achieve his unsavory objectives:

42. I would like to enlighten this Court about the real goals and purpose behind these proceedings. Mr. Nussbaum is a sick individual and unfortunately I have realized this too late. When Mr. Nussbaum first contacted me sometime around January 2013 and convinced me to go for his scheme to defraud Empire in order to try to obtain the release of the investment vehicles without buying back Empire's 60% interest in the investment vehicles, he told that he was ready to do anything to finally put Empire out of business. Mr. Nussbaum further promised me that he would serve as my attorney in this respect for a deep discount because the rest of his fees would be received from the Igor Cherkassky, the owner of a competitor of Empire, known as Unitrans-PRA. Mr. Due to my desperation caused by a poor financial situation I allowed Mr. Nussbaum to induce me into cooperating with his scheme.

43. Nussbaum further explained to me that nobody can win any court cases without hiding material evidence and fabricating documents, and on a number of occasions Mr. Nussbaum knowingly induced me to testify falsely or to otherwise produce evidence that he knew was false, by promising me to act as my counsel for free and/or to refund monies previously paid to him for services already rendered.

See **Doc. No. 83** in FMC Docket No. 15-11 at p. 137, ¶¶ 42-43.

It is interesting that Mr. Nussbaum's does not deny any aspect of Mr. Kapustin's sworn testimony. Instead, he simply points to a filing by another attorney in an unrelated Federal case which he says substantiates "efforts taken by respondents and their counsel to, among other things, engage in witness tampering and collude with defendant therein, Sergey Kapustin to induce him to interfere with the orderly litigation of that matter." [**Doc. No. 112 at p. 3, n. 1**]. He further claims that "Mr. Kapustin admits to having been solicited by respondents' counsel herein, Jon Werner, for that purpose." *Id.*

However, in reality the filing relied upon provides no support for these statements whatsoever, and particularly, no support for the undersigned allegedly soliciting Mr. Kapustin or engaging in witness tampering.³ Instead, the filing consists of a report by counsel in a Federal

³ There is however, support for Mr. Nussbaum having improperly threatened Mr. Kapustin with criminal prosecution in an attempt to prevent Mr. Kapustin from providing evidence to the Commission. See **Doc. No. 83** in FMC Docket No. 15-11 at p. 137, ¶¶ 64 and 70 ("I also want the Commission to be aware that Mr. Nussbaum has lied regarding the reasons for delaying his answer to my motion. The only reason Mr. Nussbaum delayed the answer to my motion is so he would have more time to try to force me with threats to abandon my motion and to tamper with other witnesses. The Commission must be made aware that Mr. Nussbaum is nothing but a sick person and a common criminal who tries to use altered documents and thinks that this is the proper way to avoid justice.").

case that is completely unrelated to this matter,⁴ regarding a series of emails sent by Mr. Kapustin venting about the developments in that case, and capped by an email from Mr. Kapustin asserting that some of these emails “were dictated to me by Marcus Nussbaum” who he repeatedly describes as a “dishonest attorney” who “made me and other Global company’s employees to sign documents which are complete lies.” See **Doc. No. 101** in FMC Docket No. 15-11 at p. 13.

It is also notable that Mr. Nussbaum never actually denied any of Mr. Kapustin’s “scandalous” accusations when they were originally made in FMC Docket No. 15-11 in connection with Mr. Kapustin’s motion to intervene to seek to disqualify Mr. Nussbaum as counsel for the Complainants in that proceeding. Instead, Mr. Nussbaum limited his opposition to arguing that Mr. Kapustin’s motion to intervene should be denied because the certificate of service for same was defective for failing to indicate the location where it was signed, and to arguing that Mr. Kapustin was an inveterate liar and a fraud. See **Doc. No. 88** in FMC Docket No. 15-11 at pp. 6 and 10.

Mr. Nussbaum saw no problem in describing Mr. Kapustin as an untrustworthy liar “completely lacking in credibility” notwithstanding the fact that just a few months prior he had been working on behalf of Mr. Kapustin to “bring certain information to the attention of the Court” (*i.e.* the Presiding Judge). See **Doc. No. 102** in FMC Docket No. 15-11 at p. 3 and **Doc. No. 83** in FMC Docket No. 15-11 at p. 96, Appendix 16.

In any event, Mr. Nussbaum has failed to demonstrate grounds for striking Respondents’ Opposition under Rule 12(f) of the Federal Rules of Civil Procedure or any other applicable rule or practice or procedure.

⁴ The undersigned would not normally waste time in addressing an argument that is so obviously unrelated to this proceeding, but the undersigned cannot simply ignore Mr. Nussbaum’s attempt at character assassination through what is an obvious falsehood.

Respondents' Opposition Did Exceed the Page Limit

The only meritorious argument raised by Mr. Nussbaum is that Respondents' Opposition was indeed two pages over the ten-page limit provided for under Rule 71(d). The undersigned regrets the oversight, which was due to a mistaken belief that the relevant limit was 15 pages. The length of Respondents' Opposition was primarily due to the need to provide background information concerning the DNJ case since Mr. Nussbaum relied upon that matter as a basis for seeking a stay. **Respondents are not asking for any form of relief**, and respectfully defer to the Commission to decide whether to extend the page limit *nunc pro tunc*, to require Respondents to edit their Opposition to comply with the page limits, or to disregard the last two pages.

Complainant's Counsel's Continued Failure to Confer

Finally, Respondents wish to document for the record that Mr. Nussbaum has yet again failed to confer as required under Rule 71(a) prior to filing the instant motion. Mr. Nussbaum wrote to the undersigned on **Sunday**, August 27, 2017 at 6:43 p.m. and stated that "on Monday August 28, 2017 complainant intends to file a motion seeking to correct the record with respect to the Commission's Notice Denying Extension of Time, which incorrectly states that complainant filed its second motion for an extension of time on August 16, 2017." In that same email Mr. Nussbaum sought the undersigned's "advise [sic] as soon as possible as to whether or not your client will consent to complainant's requested relief from the Commission." See Mr. Nussbaum's August 27, 2017 email attached as **Exhibit 4**.

However, before the undersigned had an opportunity to respond (and in reality before any reasonable person would expect to have to respond), Mr. Nussbaum filed his motion at **1:24 a.m.** on Monday, August 28, 2017. See Mr. Nussbaum's August 28, 2017 email attached as **Exhibit 5**.

On August 30, 2017, the Secretary of the Commission correctly chastised Mr. Nussbaum for his failure to confer with the opposing party and rejected Complainant's motion.

Rather than confer in good faith as required under Rule 71(a), Mr. Nussbaum then sent a boilerplate request for consent to file his rejected motion, refused to answer any questions posed by the undersigned, refused to provide a copy of the actual proposed motion for review, accused the undersigned of attempting to "game" the Commission, and then unilaterally re-filed his motion rather than give Respondents any additional time to consider his request or wait for the Secretary of the Commission to respond to a query by the undersigned as to whether the typographical error raised by Mr. Nussbaum could be corrected without the need for any further motion practice. See Mr. Nussbaum's email exchanges with the undersigned attached as **Exhibit 6**.

At the same time he re-filed his motion, Mr. Nussbaum filed a "status report" in which he took the incredible position of arguing that since "the Commission's Rules of Practice and Procedure do not explicitly define a time period certain within which parties must confer prior to the filing of non-dispositive motions ... the door has been left open to what might appear to be a lack of an even handed treatment of parties and their counsel with respect to compliance with the Commission's requirement to confer." [**Doc. No. 110 at p. 3**]. In other words, Mr. Nussbaum sees no problem with "conferring" by sending an email to opposing counsel at 6:43 p.m. on a **Sunday**, indicating that he would be filing a motion on Monday, and then only waiting until **1:24 a.m.** before filing his motion. One wonders where Mr. Nussbaum draws the line: is Rule 71(a) satisfied if one sends an email to an adversary seeking consent, and then waits a mere five minutes before filing a non-dispositive motion?

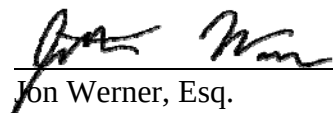
Respondents wish to again remind the Commission of Mr. Nussbaum's repeated violations of the FMC Rules, including Rule 71(a)'s obligation to confer. In just the past month, Mr. Nussbaum failed to confer before filing his initial motion requesting an extension of time on August 1, 2017, leading to that filing being rejected by the Secretary. **[Doc. No. 99 at p. 10]**. He again failed to confer regarding his August 15, 2017 request for a stay. **[Doc. No. 102]**. He failed to confer regarding his August 22, 2017 request for an evidentiary hearing. **[Doc. No. 105]**. He failed to confer regarding his August 22, 2017 motion for confidential treatment. **[Doc. No. 104]**. And as noted above, Mr. Nussbaum failed to confer before filing his August 28, 2017 motion for "other relief."

Respondents respectfully submit that if Mr. Nussbaum's latest motion practice does not constitute bad faith and frivolous litigation, which supports the award of reasonable attorney fees to Respondents as a deterrent to such conduct, in a manner which is consistent with the purposes of the Shipping Act, then no conduct by counsel or a party would ever support an award of attorney fees.⁵

Dated this 7th day of September 2017.

LYONS & FLOOD, LLP

By:


Jon Werner, Esq.
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
(212) 594-2400
(212) 594-4589 (fax)
jwerner@lyons-flood.com
Attorney for Respondents

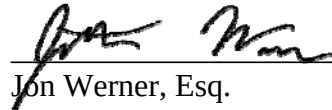
⁵ Since the preparation and filing of Respondents' Petition Regarding Attorney Fees on July 19, 2017, the undersigned has been forced to expend approximately 18.5 additional hours in responding to Mr. Nussbaum's endless campaign of non-dispositive motions, at a further cost of \$5,272.50 to Respondents.

CERTIFICATE OF SERVICE

I hereby certify that I have this day served RESPONDENTS' OPPOSITION TO COMPLAINANT'S MOTION FOR OTHER RELIEF upon all parties of record by first class mail and email at the addresses below, and that the original and five copies are being filed with the Secretary of the Federal Maritime Commission:

Marcus A. Nussbaum, Esq.
Attorneys for Complainant
P.O. Box 245599
Brooklyn, NY 11224
marcus.nussbaum@gmail.com

Dated this 7th day of September 2017.



Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

EXHIBIT 1

From: Jon Werner <jwerner@lyons-flood.com>
Sent: Wednesday, August 23, 2017 11:04 AM
To: 'Secretary'; Gerry Doyle (gdoyle@doylelaw.net)
Cc: marcus.nussbaum@gmail.com
Subject: RE: Docket 14-16: Respondents Petition Regarding Attorney Fees
Attachments: Respondents' Opposition to Complainant's Motion for an Indefinite Stay.pdf

Dear Secretary of the Federal Maritime Commission:

It has come my attention that the file attached to my email below was not working. The corrected attachment is enclosed. I apologize for the technical error.

Regards,

**Jon
Werner**
**Lyons &
Flood, LLP**
One Exchange
Plaza
55 Broadway,
Suite 1501
New York, NY
10006
Tel: (212) 594-
2400
Fax: (212) 594-
4589
Mob: (917)
509-2797
[jwerner@lyons-
flood.com](mailto:jwerner@lyons-flood.com)



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From: Jon Werner [<mailto:jwerner@lyons-flood.com>]
Sent: Tuesday, August 22, 2017 11:49 PM
To: 'Secretary'; Gerry Doyle (gdoyle@doylelaw.net)
Cc: marcus.nussbaum@gmail.com
Subject: Docket 14-16: Respondents Petition Regarding Attorney Fees

Dear Secretary of the Federal Maritime Commission:

Enclosed for filing in the above-captioned matter is Respondents' Opposition to Complainant's Motion for an Indefinite Stay. The original and five copies identical to the attached have been mailed. Counsel for Complainant is served by email and mail.

Regards,

EXHIBIT 2

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Thursday, September 07, 2017 4:32 PM
To: Rachel Dickon
Cc: Jon Werner; Gerry Doyle
Subject: FMC Docket No.: 14-16

Dear Ms. Dickon,

I write to you with respect to Mr. Werner's email below, which raises a technical issue.

Unbeknownst to me, it appears that my digital signature from the Confidential Version of Complainant's Response to Respondents' Petition Regarding Attorney Fees was inadvertently deleted, and is also missing from the Certificate of Service for same. The public versions of both documents contain the digital signature.

I note that there is no question that these documents were served by me upon the Commission and respondents' counsel by email and in hard copy form.

Does this issue need to be corrected by means of an errata or otherwise and does the Commission need me to provide the two signed pages at this time?

I also note that to the extent that respondents suggest that this forms the basis for a motion to strike these documents, that in FMC Docket No.: 15-11, respondents' attorney, Mr. Jeffrey filed multiple unsigned documents on the docket, and complainants' motions to strike them were denied by the Presiding Officer. Inasmuch as it would appear that there is a precedent that missing signatures are not a basis for striking a document, such a motion would be an unnecessary burden upon the Commission.

We thank you for your continued courtesy and consideration and await your advise.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)

<http://www.nussbaumlawfirm.com/>

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----- Forwarded message -----

From: **Jon Werner** <jwerner@lyons-flood.com>

Date: Wed, Sep 6, 2017 at 10:33 PM

Subject: FMC Docket No.: 14-16

To: marcus.nussbaum@gmail.com

Cc: Gerry Doyle <gdoyle@doylelaw.net>

Mr. Nussbaum,

On further review of Complainant's Response to Respondents' Petition Regarding Attorney Fees **[Doc. No. 105]**, I noticed that the Confidential Version you served was not signed by you, and further that the certificate of service was also unsigned.

It appears to Respondents that this filing is defective. Respondents are therefore compelled to make a motion to strike this filing. Will Complainant's consent to this motion? Please advise.

Alternatively, if you can suggest another way to resolve this issue with the defective filing, Respondents are ready to consider same.

Regards,

**Jon
Werner**

**Lyons &
Flood, LLP**

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Plaza

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10006](#)

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EXHIBIT 3

From: Gerry Doyle <gdoyle@doylelaw.net>
Sent: Wednesday, August 23, 2017 8:41 AM
To: Jon Werner
Cc: Gerry Doyle
Subject: RE: Docket 14-16: Respondents Petition Regarding Attorney Fees

Jon:

I couldn't open your attachment.

My computer says that it may have been corrupted.

Please re-send (at least to me).

Gerry

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
636 Morris Turnpike
Short Hills, NJ 07078
(973) 467-4433 (x. 3)
(973) 467-1199 (fax)
gdoyle@doylelaw.net

From: Jon Werner [<mailto:jwerner@lyons-flood.com>]
Sent: Tuesday, August 22, 2017 11:49 PM
To: 'Secretary' <secretary@FMC.gov>; Gerry Doyle <gdoyle@doylelaw.net>
Cc: marcus.nussbaum@gmail.com
Subject: Docket 14-16: Respondents Petition Regarding Attorney Fees

Dear Secretary of the Federal Maritime Commission:

Enclosed for filing in the above-captioned matter is Respondents' Opposition to Complainant's Motion for an Indefinite Stay. The original and five copies identical to the attached have been mailed. Counsel for Complainant is served by email and mail.

Regards,

**Jon
Werner**
**Lyons &
Flood, LLP**
One Exchange
Plaza
55 Broadway,
Suite 1501
New York, NY
10006
Tel: (212) 594-
2400
Fax: (212) 594-
4589



EXHIBIT 4

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Sunday, August 27, 2017 6:43 PM
To: Gerry Doyle; Jon Werner
Subject: Docket No.: 14-16

Counsel,

Please be advised that on Monday August 28, 2017 complainant intends to file a motion seeking to correct the record with respect to the Commission's Notice Denying Extension of Time, which incorrectly states that complainant filed its second motion for an extension of time on August 16, 2017.

Said motion will also request that the Commission disregard and/or strike respondents' Opposition to Complainant's Motion for an Indefinite Stay to the extent that said filing was untimely; that in the process of filing same, the respondents have improperly requested the Office of the Secretary to grant relief by email; and that said opposition improperly refers to matters outside of the scope of complainant's requested relief.

Please advise as soon as possible as to whether or not your client will consent to complainant's requested relief from the Commission.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)
<http://www.nussbaumlawfirm.com/>

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EXHIBIT 5

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Monday, August 28, 2017 1:24 AM
To: secretary@fmc.gov
Cc: Gerry Doyle; Jon Werner
Subject: FMC Docket No.: 14-16
Attachments: COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF.pdf; APPENDIX TO COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF.pdf

Dear Secretary of the Federal Maritime Commission,

I represent the Complainant in the above referenced matter.

Attached please find: COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF and APPENDIX.

Counsel for the respondents has been served herewith and via first class mail.

The original and five copies are being mailed to your office under separate cover.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: [888-426-4370](tel:888-426-4370)
Fax: [347-572-0439](tel:347-572-0439)
<http://www.nussbaumlawfirm.com/>

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EXHIBIT 6

From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Thursday, August 31, 2017 8:50 PM
To: Jon Werner
Cc: Gerry Doyle
Subject: Re: FMC Docket No.: 14-16

Mr. Werner,

If your lack of qualification to practice before the Commission requires you to seek guidance from the Secretary regarding procedural matters, you should instead seek that guidance from your co-counsel, Mr. Doyle who purported to have 35 years of experience in these matters, as stated in his Declaration in support of respondents' Petition regarding attorneys fees.

In light of the fact that you also sat on this issue since August 28, 2017, it is no secret that your true motive for seeking guidance is to further delay these proceedings.

Therefore, there is no need to extend any courtesy regarding this issue and no need for you to burden the Secretary with same. Accordingly, you can expect to receive the re-filed motion shortly under separate cover.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
<http://www.nussbaumlawfirm.com/>

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On Thu, Aug 31, 2017 at 5:56 PM, Jon Werner <jwerner@lyons-flood.com> wrote:

Mr. Nussbaum,

As you are aware, we are all expecting guidance from the Secretary about the proper way to correct the record. I do not believe it would be good practice for you to continue to file unnecessary motions if the issue can be resolved without same.

Since you only provided further clarification at noon today, Respondents will need some time to consider your proposed filing. I would kindly ask you to extend me the courtesy of waiting until tomorrow when the Secretary will provide us with some guidance and at the same time we will express our position regarding the "other relief" you are seeking.

Regards,

**Jon
Werner**

**Lyons &
Flood, LLP**

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[jwerner@lyons-
flood.com](mailto:jwerner@lyons-flood.com)



From: Marcus Nussbaum <marcus.nussbaum@gmail.com>
Sent: Thursday, August 31, 2017 5:15 PM
To: Secretary
Cc: Gerry Doyle; Jon Werner
Subject: Re: FMC Docket No.: 14-16

Dear Ms. Dickon,

With respect to respondents' email below, complainant also has a "technical" question to the extent that the your office rejected, by email on August 30, 2017, the filing of complainant's Motion to Correct the Record.

As you are aware, on August, 28, 2017, the Motion to Correct the Record was filed, and which noted, on page "6" that complainant had contacted counsel on August 27, 2017 for purposes of conferring regarding respondents' consent or lack thereof to complainant's requested relief. Can you kindly advise as to why the motion was rejected for failure to comply with 46 C.F.R. 502.71?

We also note that as of the time of this writing, and despite two email requests that respondents' note their consent or lack thereof to the requested relief, we still have not received a response from neither Mr. Doyle nor Mr. Werner on that issue, who have instead seen fit to ask the Commission "technical" questions.

Regards,

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On Thu, Aug 31, 2017 at 3:43 PM, Jon Werner <jwerner@lyons-flood.com> wrote:

Dear Secretary,

I apologize for inadvertently copying you when I was replying all to Mr. Nussbaum's messages. I do have a question however regarding a technicality.

If a typographical error is discovered in a ruling by the Commission is it necessary for a formal motion to correct the record to be filed, or is there another way to address this error without requiring formal motion practice?

Specifically, I am asking regarding the Commission's August 17, 2017 Notice Denying Extension of Time [Doc. No. 103]. In that Notice the first sentence states: "On August 16, 2017, Complainant filed its Second Motion for an Extension of Time to File a Reply to Respondents Petition Regarding Attorneys Fees." I think this is a typographical error since on the docket it is clearly stated that Complainant's Second Motion for an Extension of Time to File a Reply to Respondents Petition Regarding Attorneys Fees was received on August 15, 2017.

Any assistance or guidance you could provide to the parties about how to correct this error would be appreciated.

Regards,

**Jon
Werner**

**Lyons &
Flood, LLP**

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jwerner@lyons-flood.com

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From: Secretary [mailto:secretary@FMC.gov]
Sent: Thursday, August 31, 2017 1:55 PM
To: Jon Werner; 'Marcus Nussbaum'
Cc: 'Gerry Doyle'; Secretary

Subject: RE: FMC Docket No.: 14-16

Gentlemen,

Please do not copy my office on correspondence that is between parties. I will not include this in the record of the proceedings, and should not receive it unless you have a specific question for me to answer in relation.

Thank you,

Rachel

Rachel E. Dickon

Assistant Secretary

Federal Maritime Commission

Ph [202-523-5725](tel:202-523-5725)

From: Jon Werner [<mailto:jwerner@lyons-flood.com>]
Sent: Thursday, August 31, 2017 1:00 PM
To: 'Marcus Nussbaum' <marcus.nussbaum@gmail.com>
Cc: 'Gerry Doyle' <gdoyle@doylelaw.net>; Secretary <secretary@fmc.gov>
Subject: RE: FMC Docket No.: 14-16

Mr. Nussbaum,

If you are filing exactly the same filing as before with no changes, then we will get back to you by close of business today regarding Respondents' position.

Regards,

**Jon
Werner**

**Lyons &
Flood, LLP**

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From: Marcus Nussbaum [<mailto:marcus.nussbaum@gmail.com>]
Sent: Thursday, August 31, 2017 12:14 PM
To: Jon Werner
Cc: Gerry Doyle; Secretary
Subject: Re: FMC Docket No.: 14-16

Mr. Werner,

Your email can only be construed as a continued attempt to 'game' the Commission and complainant inasmuch as you have already been specifically referred to Complainant's Motion to Correct the Record and for Other Relief and Appendix which you received by email on Monday, August 28, 2017.

Absent a substantive responsive from you, I will advise the Commission that respondents have declined the opportunity to note their consent or lack thereof to complainant's requested relief.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

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On Thu, Aug 31, 2017 at 11:57 AM, Jon Werner <jwerner@lyons-flood.com> wrote:

Mr. Nussbaum,

I appreciate your attempt to clarify the situation. However, to satisfy my clients who are still unclear on precisely what "other relief" you are seeking, can you kindly provide me with the proposed filing? I will revert with my clients' position as soon as I can after receiving same from you.

Regards,

Jon
Werner

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Flood, LLP

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jwerner@lyons-flood.com

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From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Wednesday, August 30, 2017 5:11 PM
To: Gerry Doyle; Jon Werner
Cc: Secretary
Subject: Re: FMC Docket No.: 14-16

Counsel,

Please be advised that subsequent to my email below, the Secretary replaced Docket Entries 108 and 109 with Mr. Werner's most recent filings.

Therefore, I trust that you understand that my email below refers specifically to the Complainant's Motion to Correct the Record and for Other Relief and Appendix thereto which you both received by email on Monday, August 28, 2017.

I await your advise.

Regards,

Marcus A. Nussbaum, Esq.
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On Wed, Aug 30, 2017 at 12:38 PM, Marcus Nussbaum <marcus.nussbaum@gmail.com> wrote:

Counsel,

Please be advised that on Thursday, August 31, 2017 complainant intends to re-file a motion seeking to correct the record with respect to the Commission's Notice Denying Extension of Time, which incorrectly states that complainant filed its second motion for an extension of time on August 16, 2017.

Said motion will also request the relief already set forth in complainant's prior filing of Monday, August 28, 2017 (Docket Entries 108 and 109).

Please advise by 1:00 p.m. on August 31, 2017 as to whether or not your client will consent to complainant's requested relief from the Commission as set forth in the motion.

Regards,

Marcus A. Nussbaum, Esq.
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On Wed, Aug 30, 2017 at 6:45 PM, Secretary <secretary@fmc.gov> wrote:

Mr. Nussbaum,

I am rejecting this filing as it is not in compliance with Commission rules because counsel did not confer with opposing party as required by 46 C.F.R. 502.71.

Thank you,

Rachel E. Dickon

Assistant Secretary

Federal Maritime Commission

Ph [202-523-5725](tel:202-523-5725)

From: Marcus Nussbaum [mailto:marcus.nussbaum@gmail.com]
Sent: Monday, August 28, 2017 1:24 AM
To: Secretary <secretary@fmc.gov>
Cc: Gerry Doyle <gdoyle@doylelaw.net>; Jon Werner <jwerner@lyons-flood.com>
Subject: FMC Docket No.: 14-16

Dear Secretary of the Federal Maritime Commission,

I represent the Complainant in the above referenced matter.

Attached please find: COMPLAINANT'S MOTION TO CORRECT THE RECORD AND FOR OTHER RELIEF and APPENDIX.

Counsel for the respondents has been served herewith and via first class mail.

The original and five copies are being mailed to your office under separate cover.

Regards,

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224

Tel: [888-426-4370](tel:888-426-4370)

Fax: [347-572-0439](tel:347-572-0439)

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